

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Law & Motion/Petition Name Change
Hon. Jennifer O Trimble
Courtroom 12

1159 G Street, Los Banos

Tuesday, September 22, 2026
1:30 p.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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26CV-03487	[Parties' names withheld pursuant to CCP § 1161.2(a)(1)]
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Demurrer

The demurrer is OVERRULED. The complaint states facts sufficient to constitute a cause of action.

Defendant is to file a responsive pleading within ten (10) days of this Court's order.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Law and Motion Tentative Rulings
Hon. Mark Bacciarini
Courtroom 10

627 W. 21st Street, Merced

Tuesday, September 22, 2026
8:15 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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25CV-07244	Judith Zolna, et al. vs 3169 M Street, LLC, et al.
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Motion for Trial Preference Pursuant to CCP Section 36(A)

The motion for trial preference is DENIED WITHOUT PREJUDICE.

As an initial matter, the procedural issues raised by Defendant appear to have been addressed by Plaintiff by way of Counsel's supplemental declaration filed on September 15, 2026.

As to the substance of the motion, insufficient evidence has been provided for the court to determine if the health of Plaintiff is such that a trial preference is necessary. (See Code Civ. Proc. § 36, subd. (a)(2).) There is no evidence attached to Counsel's declaration that supports the contention regarding Plaintiff's health or diagnosis. Counsel's statement on information and belief is insufficient.

Accordingly, the motion is denied without prejudice.
